



UIP REAL ESTATE

TERMS AND CONDITIONS FOR COLLECTION, PROCESSING AND USE OF CLIENT PERSONAL DATA

(Client Consent Notice — issued pursuant to the Data Protection Act, 2019 (Kenya) and the Data Protection (General) Regulations, 2021)

Effective Date: 15th July 2026 Version: 1.0

1. Introduction

UIP Real Estate (“UIP”, “we”, “us”, or “our”) is committed to protecting the privacy and personal data of its clients, prospective clients, and website or system users (“you”, “the Client”, or “the Data Subject”). This document sets out the terms and conditions upon which UIP collects, processes, stores, and uses your personal data through its real estate client management system (the “System”).

This notice is issued in compliance with the Data Protection Act, No. 24 of 2019 of Kenya (the “Act”), the Data Protection (General) Regulations, 2021, and any other applicable data protection laws and regulations of the Republic of Kenya. By submitting your personal data through the System, you acknowledge that you have read, understood, and freely consent to these Terms and Conditions.

2. Definitions

- “Personal Data” means any information relating to an identified or identifiable natural person, as defined under Section 2 of the Act.
- “Processing” means any operation performed on personal data, including collection, storage, use, disclosure, or destruction.
- “Data Controller” means UIP Real Estate, which determines the purpose and means of processing personal data.
- “Data Subject” means the natural person whose personal data is processed, i.e. the Client.
- “ODPC” means the Office of the Data Protection Commissioner of Kenya.

3. Data Controller Details

UIP Real Estate is the Data Controller responsible for the personal data collected through the System.

- Business Name: UIP Real Estate
- Physical Address: United Kenya Club Library Wing 3rd Floor
- Email: info@uip.co.ke
- Telephone: +254 715 444 888

4. Categories of Personal Data Collected

In the course of providing real estate services, UIP may collect the following categories of personal data from you through the System:

- Full name

- Telephone number(s)
- Email address
- Physical/postal address
- National ID / Passport number (where required for property transactions)
- KRA PIN (where required for statutory or transactional purposes)
- Property preferences, budget, and transaction history
- Payment and billing information (where applicable)
- Any other information you voluntarily provide when interacting with UIP

5. Purpose of Collecting Your Data

UIP collects and processes your personal data strictly for the following legitimate purposes:

- To identify and communicate with you regarding property listings, viewings, sales, leases, and related services;
- To prepare and process agreements, offers, invoices, and statutory documentation;
- To conduct due diligence, verification, and compliance checks as required by law;
- To respond to inquiries, complaints, and provide customer support;
- To send you relevant property updates, offers, and marketing communications, where you have separately consented to receive such communications;
- To maintain internal records, reporting, and business administration;
- To comply with any legal, regulatory, or statutory obligations.

6. Legal Basis for Processing

UIP processes your personal data on the following legal bases recognised under Section 30 of the Act:

- Your explicit consent, given by submitting your data through the System;
- Performance of a contract or transaction to which you are a party, or steps taken at your request prior to entering into such a contract;
- Compliance with a legal obligation to which UIP is subject; and
- The legitimate interests pursued by UIP in the ordinary course of its real estate business, provided such interests do not override your fundamental rights and freedoms.

7. Your Consent

By completing and submitting any form, field, or data entry within the System whether online, in person, or via any other UIP channel you expressly and voluntarily CONSENT to the collection, processing, storage, and use of your personal data by UIP in accordance with these Terms and Conditions and the Data Protection Act, 2019.

You confirm that:

- The information you provide is accurate, current, and complete;
- You are the owner of the data submitted, or you are duly authorised to submit such data on behalf of another party;
- You understand that your consent is required for UIP to process your data for the purposes described in Section 5 above;
- You understand that you may withdraw your consent at any time, as described in Section 11 below, without affecting the lawfulness of processing carried out prior to such withdrawal.

8. Sharing and Disclosure of Personal Data

UIP will not sell, rent, or trade your personal data to third parties for their own marketing purposes. Your data may, however, be shared strictly on a need-to-know basis with:

- Property owners, developers, landlords, or sellers, solely for purposes of facilitating a transaction you have expressed interest in;
- Advocates, valuers, surveyors, financiers, and other professionals engaged to facilitate a transaction;
- Government agencies and regulatory bodies, where required by law (e.g. Kenya Revenue Authority, Ministry of Lands, National Land Commission);
- Third-party service providers (e.g. IT hosting, payment processors) who process data solely on UIP's instructions and under confidentiality obligations;
- Any party where disclosure is required to comply with a legal obligation, court order, or to protect the rights, property, or safety of UIP, its clients, or the public.

Any such sharing shall be conducted in compliance with the Act and, where applicable, subject to data sharing agreements that safeguard your personal data.

9. Data Storage and Security

UIP shall implement appropriate technical and organisational measures to protect your personal data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure, or access, in line with Section 41 of the Act. These measures include restricted system access, secure servers, and staff confidentiality obligations.

While UIP takes reasonable steps to secure your data, no system of electronic storage or transmission can be guaranteed to be 100% secure. UIP will notify you and the ODPC of any data breach likely to result in a risk to your rights and freedoms, in accordance with Section 43 of the Act.

10. Data Retention

UIP will retain your personal data only for as long as is necessary to fulfil the purposes outlined in this notice, to comply with legal, regulatory, accounting, or reporting requirements, or to resolve disputes. Where your data is no longer required, it will be securely deleted, anonymised, or destroyed.

11. Your Rights as a Data Subject

Under Section 26 of the Act, you have the following rights in relation to your personal data:

- The right to be informed of the use to which your personal data is to be put;
- The right to access your personal data held by UIP;
- The right to request correction or rectification of inaccurate or outdated personal data;
- The right to object to the processing of all or part of your personal data;
- The right to request deletion or destruction of your personal data, where applicable;
- The right to withdraw your consent at any time;
- The right to data portability, where applicable;
- The right to lodge a complaint with the Office of the Data Protection Commissioner (ODPC).

To exercise any of these rights, please contact UIP using the details provided in Section 3 above.

12. Withdrawal of Consent

You may withdraw your consent to the processing of your personal data at any time by submitting a written request to UIP via the contact details in Section 3. Please note that withdrawal of consent may affect UIP's ability to continue providing certain services to you, and shall not affect the lawfulness of any processing carried out prior to such withdrawal.

13. Cross-Border Data Transfers

Where UIP engages service providers or partners located outside Kenya (for example, cloud storage providers), your personal data may be transferred outside Kenya. Any such transfer shall only be undertaken in compliance with Section 48 of the Act, including confirmation that the recipient country has adequate data protection safeguards, or that appropriate contractual or other safeguards have been put in place.

14. Complaints

If you believe your personal data has been processed unlawfully or that your rights under the Act have been violated, you may lodge a complaint directly with UIP or with the Office of the Data Protection Commissioner (ODPC):

- Address: Office of the Data Protection Commissioner, Britam Towers, Nairobi, Kenya
- Email: info@odpc.go.ke
- Website: www.odpc.go.ke

15. Amendments to these Terms

UIP reserves the right to amend or update these Terms and Conditions from time to time to reflect changes in the law or UIP's data practices. Any material changes will be communicated to clients through the System or other appropriate channels. Continued use of the System after such changes constitutes acceptance of the revised terms.

16. Governing Law

These Terms and Conditions shall be governed by and construed in accordance with the laws of the Republic of Kenya, including the Data Protection Act, 2019, and any disputes arising herefrom shall be subject to the exclusive jurisdiction of the courts of Kenya.

Client Consent Declaration

By ticking the box / signing below and submitting my information into the UIP Real Estate System, I confirm that:

- I have read and understood the Terms and Conditions set out above;
- I voluntarily consent to UIP Real Estate collecting, processing, storing, and using my personal data for the purposes described herein;
- I understand my rights under the Data Protection Act, 2019, and how to exercise them;
- I understand that I may withdraw my consent at any time.

☐ **I AGREE to the Terms and Conditions and consent to the processing of my personal data as described above.**

Client Full Name: _____ Signature: _____

ID/Passport No.: _____ Date: _____

Phone No.: _____ Email: _____

For UIP Real Estate use only:

Received by: _____ Date: _____ System Record No.: _____